

		Approval Hearing date to provide enough time for court review, and must be served in compliance with CCP notice of motion requirements. Plaintiff is ordered to give notice of this ruling to the LWDA and Defendant.
3	30-2024-01408266 Immings vs. Great Subs SC II, LLC	Plaintiff Stephanie Immings' ("Plaintiff") Motion for Preliminary Approval of Class Action and PAGA Settlement is GRANTED ON THE CONDITION THAT Plaintiff provide the Request for Exclusion Form that must be included with the class notice for the court's approval. A Final Approval Hearing is set for February 22, 2027 at 1:30 p.m. All papers in support of the Final Approval Hearing, including detailed hourly breakdowns of plaintiff's attorneys to support a lodestar cross-check, detailed plaintiff attorney cost breakdowns, an Administrator declaration and invoice, and plaintiffs' declarations to support the enhancement request, must be filed at least 16 calendar days before the Final Approval Hearing date, to provide enough time for court review, and must be served in compliance with CCP notice of motion requirements. Plaintiff is ordered to give notice of this ruling to the LWDA and Defendants.
4	30-2024-01447843 Sierra vs. Direct Edge Media, Inc.	The tentative ruling is to continue Plaintiff Benito Sierra's ("Plaintiff") Motion for Preliminary Approval of Class Action and PAGA Settlement to December 14, 2026 at 1:30 p.m. Counsel must file supplemental papers addressing the court's concerns (not fully revised papers that would have to be reread) no later than two weeks before the next hearing date. Counsel must submit an amendment to the settlement agreement rather than any amended settlement agreement. Counsel also must provide a red-lined version of any revised papers. Counsel also should provide the court with an explanation of how the pending issues were resolved, with references to any corrections to the settlement agreement and the class notice, rather than with a supplemental declaration or brief that simply asserts the issues have been resolved.

		The allocation of only 20% of the settlement payments for wages appears to be low. Either an increase to 33 1/3% or an explanation of why the figure is not at least 33 1/3% is required. The court is inclined to grant approval of an attorneys' fees request of 30% of the gross settlement amount, which the court finds fair, adequate and reasonable for the settlement of this size. The parties may either reduce the attorneys' fees request by amendment to the settlement agreement and the class notice, or Plaintiff must provide documentation and support for any request higher than this percentage at the final approval stage. The settlement agreement and class notice are inconsistent as to who will resolve workweek disputes. Section 4(3) of the class notice states that the Administrator will resolve any workweek disputes. The documents should reflect instead that, while the Administrator and the parties will attempt to resolve any such dispute, the court will ultimately decide any unresolved dispute. The following corrections must be made to the class notice: 1. The class notice and attached forms should be printed on a plain document, not using the law firm template formatting. 2. The class notice should have page numbers on every page, starting with 1. 3. On page 2 of the class notice, the phrase "If you worked for DEM during the Class Period and/or the PAGA Period, you have two basic options under the Settlement:" should be amended to state that there are four options. 4. In the left column of the table on row 2 of page 4 of the class settlement, it should state: "Participating Class Members Can Object to the Class Settlement," and the phrase "but not the PAGA Settlement" should be deleted. Class members and aggrieved employees may object to the amount allocated to PAGA penalties. 5. Section 1 of the class notice should disclose the UCL claim. 6. Section 3(2) of the class notice should be entitled "Deductions from Gross Settlement Subject to Court Approval," not "Court Approved Deductions from Gross Settlement." 7. Sections 3(6) and 6 of the class notice should reference the Request for Exclusion Form rather than a letter to be drafted by the class member.
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		Counsel should propose a realistic Final Approval Hearing date, bearing in mind that all papers in support of the Final Approval Hearing, including detailed hourly breakdowns of plaintiff's attorneys to support a lodestar cross-check, detailed plaintiff attorney cost breakdowns, an Administrator declaration and invoice, and plaintiff's declaration to support the enhancement request, must be filed at least 16 calendar days before the Final Approval Hearing date to provide enough time for court review, and must be served in compliance with CCP notice of motion requirements. Plaintiff is ordered to give notice of this ruling to the LWDA and Defendant.
5	30-2022-01239291 Kirkpatrick vs. A Mission for Michael, Inc.	The tentative ruling is to continue the hearing on Plaintiff Julian Kirkpatrick's ("Plaintiff") Motion for Approval of Settlement Under Private Attorneys General Act ("PAGA") to November 16, 2026 at 1:30 p.m. Counsel must file supplemental papers addressing the court's concerns (not fully revised papers that would have to be reread) no later than two weeks before the next hearing date. Counsel must submit an amendment to the settlement agreement rather than any amended settlement agreement. Counsel also must provide a red-lined version of any revised papers. Counsel also should provide the court with an explanation of how the pending issues were resolved, with references to any corrections to the settlement agreement, rather than with a supplemental declaration or brief that simply asserts the issues have been resolved. The following issues were identified in the court's previous order but were not adequately addressed by the supplemental papers: The court will not approve the following language, which must be removed from the settlement agreement: "The Aggrieved Employees and Plaintiffs Counsel understand and agree that they shall be responsible for the payment of all taxes and penalties assessed on the payments specified herein, and shall hold the Parties, Plaintiffs Counsel, and Defense Counsel free and harmless from and against any claims resulting from treatment of such payments as non-taxable, including the treatment of such payments as not subject to withholding or deduction for payroll and employment taxes." (Settlement ¶ 35.) This language must be removed via an amendment to the settlement agreement.